

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Harold Rodriguez	Team: Squad #01	CCRB Case #: 201808025	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Thursday, 09/20/2018 3:18 PM	Location of Incident: 100-01 217th Lane, In an ambulance, at the 105th Precinct Stationhouse, at Queens Central Booking	18 Mo. SOL 11/4/2020	Precinct: 105
Date/Time CV Reported Thu, 09/20/2018 7:19 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 09/27/2018 11:03 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Alan Delrosario	07223	960436	105 PCT
2. POM Matthew Kashdan	11199	936844	105 PCT
3. An officer			105 PCT
4. Officers			105 PCT
5. POM Brendan Mcnamara	1513	957842	105 PCT
6. SGT Adriano Deleon	02580	940069	105 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Shavnarine Ghani	29857	936662	105 PCT
2. POM Matthew Serviss	12892	965522	105 PCT
3. POF Crystal Collins	10981	948797	105 PCT
4. POM Angel Rivera	01904	961170	105 PCT
5. POM William Hespeler	24938	962474	105 PCT
6. POM Richard Tarver	23842	943860	105 PCT
7. POM Victor Pross	07505	961126	105 PCT
8. POF Danielle Renna	14702	962670	105 PCT
9. POM Vicente Vivar	06025	949775	105 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Matthew Kashdan	Force: At 100-01 217th Lane, in Queens, Police Officer Matthew Kashdan pointed his gun at § 87(2)(b)	A . Exonerated
B . Officers	Force: At 100-01 217th Lane, in Queens, officers pointed their guns at § 87(2)(b)	B . Officer(s) Unidentified
C . Officers	Force: At 100-01 217th Lane, in Queens, officers used physical force against § 87(2)(b)	C . Officer(s) Unidentified
D . POM Alan Delrosario	Abuse: At 100-01 217th Lane, in Queens, Police Officer Alan Delrosario threatened § 87(2)(b) with the use of force.	D . Exonerated
E . POM Alan Delrosario	Discourtesy: At 100-01 217th Lane, in Queens, Police Officer Alan Delrosario spoke discourteously to § 87(2)(b)	E . Exonerated

Officer(s)	Allegation	Investigator Recommendation
F . Officers	Force: At 100-01 217th Lane, in Queens, officers used physical force against § 87(2)(b)	F . Unfounded
G . SGT Adriano Deleon	Discourtesy: At 100-01 217th Lane, in Queens, Sergeant Adriano Deleon spoke discourteously to § 87(2)(b)	G . Substantiated
H . SGT Adriano Deleon	Abuse: At 100-01 217th Lane, in Queens, Sergeant Adriano Deleon threatened § 87(2)(b) with the use of force.	H . Substantiated
I . POM Brendan Mcnamara	Discourtesy: At 100-01 217th Lane, in Queens, Police Officer Brendan Mcnamara spoke discourteously to § 87(2)(b)	I . Unfounded
J . POM Brendan Mcnamara	Discourtesy: In an ambulance, Police Officer Brendan Mcnamara spoke discourteously to § 87(2)(b)	J . Unsubstantiated
K . POM Brendan Mcnamara	Discourtesy: At the 105th Precinct Stationhouse, Police Officer Brendan Mcnamara spoke discourteously to § 87(2)(b)	K . Unsubstantiated
L . An officer	Discourtesy: At Queens Central Booking, an officer spoke discourteously to § 87(2)(b)	L . Officer(s) Unidentified
§ 87(4-b) § 87(2)(g)		

Case Summary

Sgt. Adriano DeLeon of the 105th Precinct called IAB and filed the following complaint on behalf of § 87(2)(b) on September 20, 2018. The CCRB received the complaint on September 27, 2018.

On September 20, 2018, at approximately 3:18 p.m., § 87(2)(b) and his girlfriend, § 87(2)(b) § 87(2)(b) shoplifted from a Walgreens located at 218-51 Hempstead Avenue in Queens. § 87(2)(b) was detained by the store's Loss Prevention team until PO Crystal Collins and PO Alan Delrosario of the 105th Precinct arrived. When PO Delrosario went to handcuff § 87(2)(b) he broke free and ran away. § 87(2)(b) was caught by responding officers several blocks away. Approximately seven officers, including PO Matthew Kashdan of the 105th Precinct allegedly approached § 87(2)(b) with guns pointed (**Allegations A- Force: Exonerated, Allegation B-Force: Officers Unidentified**). Officers then allegedly took § 87(2)(b) down to the ground, punched him, stomped on the back of his knee while handcuffing him (**Allegation C-Force: Officers Unidentified**). Upon approaching § 87(2)(b) PO Delrosario yelled, "I will fucking tase you" and "Get on the fucking ground" (**Allegation D-Abuse of Authority: Exonerated**) (**Allegation E-Discourtesy: Exonerated**). After § 87(2)(b) was in handcuffs, he complained that his arm was broken from officers forcefully pulling his arm back (**Allegation F- Force: Unfounded**) and Sgt. DeLeon replied "Shut up. I'll fucking fuck you up" (**Allegation G-Discourtesy: Substantiated**) (**Allegation H-Abuse of Authority: Substantiated**). Officers placed § 87(2)(b) in a vehicle and PO Brendan McNamara allegedly told § 87(2)(b) to, "shut the fuck up" when he complained about his arm (**Allegation I-Discourtesy: Unfounded**). § 87(2)(b) was removed from the vehicle and taken to § 87(2)(b) in an ambulance. Inside of the ambulance and at the 105th Precinct Stationhouse § 87(2)(b) § 87(2)(b) complained about his arm hurting and PO McNamara allegedly replied, "shut the fuck up" (**Allegations J and K-Discourtesy: Unsubstantiated**). At Queens Central Booking, § 87(2)(b) § 87(2)(b) complained about pain to his arm and an unidentified Hispanic male officer told him to, "shut the fuck up" (**Allegation L-Discourtesy: Officer(s) Unidentified**). § 87(2)(g), § 87(4-b) § 87(2)(b) was arrested for Petit Larceny and Resisting Arrest.

There are 15 BWC videos associated with this case from the following officers: PO Crystal Collins, PO Alan Delrosario, PO Matthew Serviss, PO Richard Tarver, PO Vicente Vivar, PO Danielle Renna, PO Victor Pross, PO William Hespeler, PO Angel Rivera, PO Shavnarine Ghani, and PO Brendan McNamara (Board Reviews 1-15).

Findings and Recommendations

Allegation (A) Force: At § 87(2)(b), **in Queens, Police Officer Matthew Kashdan pointed his gun at** § 87(2)(b)

Allegation (B) Force: At § 87(2)(b), **in Queens, officers pointed their guns at** § 87(2)(b)

Allegation (C) Force: At § 87(2)(b), **in Queens, officers used physical force against** § 87(2)(b)

§ 87(2)(b) stated that he broke free from PO Delrosario's handcuffs and ran away from the Walgreens location. He ran into the front yard of a house and seven officers approached him with their guns pointed at him. One of the officers grabbed § 87(2)(b)'s leg and another by his arm, then slammed him on the ground. He referred to this action as a double leg takedown. The officers turned him over and punched and stomped the back of his knees. He could not describe any of the officers (Board Review 16).

PO Delrosario stated that he and PO Collins responded to a larceny in progress at a Walgreens.

While talking to § 87(2)(b) he appeared fidgety. PO Collins grabbed one of § 87(2)(b)'s arms to handcuff him and he took off running. PO Delrosario chased him approximately two blocks and PO Collins remained behind because she fell during the chase. PO Delrosario called for backup as he chased § 87(2)(b) and eventually saw him hop a fence onto a property. PO Delrosario approached § 87(2)(b) with his taser in hand and did not recall if any officers had their guns out. He recalled that § 87(2)(b) went down to the ground but did not recall if any officers took him down, punched or stomped on § 87(2)(b) (Board Review 17).

PO Kashdan testified that he recalled the initial radio run noting that § 87(2)(b) had a knife when he stole from the Walgreens. PO Kashdan chased § 87(2)(b) in his vehicle and then found him hiding behind the detached garage of the house at 100-02 217th Lane. PO Kashdan stated that there were no other officers with him upon initial approach. PO Kashdan gave § 87(2)(b) multiple commands to stop and to come towards him but § 87(2)(b) ignored the commands and started walking away. Because PO Kashdan was by himself, believed that § 87(2)(b) could have a knife, and because § 87(2)(b) was refusing to comply with his commands, PO Kashdan drew and pointed his gun at § 87(2)(b). PO Kashdan issued additional commands to § 87(2)(b) to stay where he was but § 87(2)(b) fled toward the front of the house. PO Kashdan holstered his weapon, jumped the fence and chased § 87(2)(b) to the front of the house. Once in front of the house, PO Kashdan and other unknown officers pulled § 87(2)(b) down to the ground by his arms. No officers punched or kicked him. PO Kashdan did not capture this approach on BWC as he received a body camera less than 90 days prior and was still learning how to use it (Board Review 37).

PO Ghani ran with other officers, including his partner PO Serviss, and found § 87(2)(b) in the front yard of a house. PO Kashdan arrived before him and PO Delrosario was present. PO Ghani did not recall if he or any other officers had their guns out. Officers pulled § 87(2)(b) to the ground and did not tackle him. PO Ghani denied that officers kicked or punched § 87(2)(b) but did not recall which officers handcuffed him. (Board Review 18).

PO Delrosario's BWC video (Board Review 02) depicts two officers, identified by the investigation as PO Kashdan and PO Ghani, approaching § 87(2)(b) at the 3:44 mark of the video player. Between PO Delrosario and other unknown voices, § 87(2)(b) was told at least eight times to get on the ground. § 87(2)(b) stood in the front yard, behind a fence and looked at the officers that approached him from behind. The video is too blurry and it is unclear if the officers have anything in their hands, but PO Delrosario is depicted having a taser in his hand. A frame by frame analysis of the video (Board Review 20) showed the officers grab § 87(2)(b)'s arms and he pulled back and fell into a seated position onto the grass. No officer is seen grabbing his leg or slamming him to the ground. At the 3:55 mark of PO Delrosario's BWC video and then continuing in PO Serviss' BWC video (Board Review 3) at the 29 second mark, § 87(2)(b)'s apprehension is shown but does not have a complete depiction as the camera was not always facing § 87(2)(b).

The EVENT chronology (Board Review 21) does not include any information about § 87(2)(b) having a knife or any weapon.

Patrol Guide Procedure 221-01 states that the decision to display or draw a firearm should be based on an articulable belief that the potential for serious physical injury is present. When a uniformed member of service determined that the potential for serious physical injury is no longer present, the uniformed member of service will holster the firearm as soon as practicable. Additionally, an officer's use of force must be reasonably necessary to gain control or custody of a subject (Board Review 21).

§ 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegation A** be closed as **exonerated**.

§ 87(2)(g)

it is recommended that **Allegation B** be closed as **Officers Unidentified**.

§ 87(2)(g)

It is therefore recommended that **Allegation C** be closed as **Unsubstantiated**.

Allegation (D) Abuse of Authority: At 100-01 217th Lane, in Queens, Police Officer Alan Delrosario threatened § 87(2)(b) with the use of force.

Allegation (E) Discourtesy: At 100-01 217th Lane, in Queens, Police Officer Alan Delrosario spoke discourteously to § 87(2)(b)

It is undisputed that § 87(2)(b) broke free and ran away when PO Collins and PO Delrosario attempted to handcuff him. § 87(2)(b) entered the enclosed front yard of a private hosue and officers chased him there. It is also undisputed that upon approaching § 87(2)(b) PO Delrosario pointed a taser at § 87(2)(b) and threatened to use it on him.

§ 87(2)(b) stated that once officers took him down to the ground, one of the officers took out his taser. He denied resisting arrest and did not allege that PO Delrosario cursed at him.

PO Delrosario's BWC video showed that between PO Delrosario and other unknown voices, § 87(2)(b) was told at least eight times to get on the ground. Officers also told § 87(2)(b) to roll over and put his hands behind his back, four times. Starting at 3:41 of PO Delrosario's BWC video, he repeatedly yelled, "Get on the fucking ground" and "I will fucking tase you" as he ran up to the fence and then towards an uncuffed § 87(2)(b) on the ground.

PO Delrosario testified that he took his taser out because once § 87(2)(b) hopped over the fence of the property, PO Delrosario lost sight of him and § 87(2)(b) could have grabbed something behind the fence and used it as a weapon. He threatened to use the taser because § 87(2)(b) resisted arrest by placing his hands underneath his body and would not put them behind his back. During his interview, PO Delrosario identified his own voice in his BWC video as making the above comments.

Patrol Guide Procedure 221-01 states that all use of force, including the use of a CEW device, must be objectively reasonable under the totality of the circumstances (Board Review 21).

In DAO-DCT case number 2017-17276, the trial commissioner held that in a violent and stressful street encounter, “language which would ordinarily be inappropriate in dealing with civilians may be excused” (Board Review 22).

§ 87(2)(g)

It is therefore recommended that **Allegations D and E** be closed as **Exonerated**.

Allegation (F) Force: At 100-01 217th Lane, in Queens, officers used physical force against

§ 87(2)(b)

§ 87(2)(b) alleged that officers forcefully pulled his arm behind his back and he heard a snap and felt a pop on the back of his arm. He believed that officers broke his arm while pulling it back to handcuff him.

In PO Serviss’ BWC video, at the 54 second mark, approximately four officers hold § 87(2)(b) s arms behind his back while he lays chest down on the ground and handcuff him. After officer cuffed his left wrist and work to cuff his right, § 87(2)(b) pulls his right arm away from the officers and screams multiple times that his arm is broken. No force beyond holding his arms behind his back is observed. At 3:05, § 87(2)(b) complains that his left arm is broken (Board Review 03).

An ambulance arrived on scene and removed § 87(2)(b) to § 87(2)(b).

§ 87(2)(a) PHL § 18(6), § 87(2)(b)

§ 87(2)(g)

It is therefore recommended that **Allegation F** be closed as **Unfounded**.

Allegation (G) Discourtesy: At 100-01 217th Lane, in Queens, Sergeant Adriano Deleon spoke discourteously to § 87(2)(b)

Allegation (H) Abuse of Authority: At 100-01 217th Lane, in Queens, Sergeant Adriano Deleon threatened § 87(2)(b) **with the use of force.**

§ 87(2)(b) did not allege during his interview that Sgt. Deleon cursed at him. § 87(2)(g)

During PO Serviss’ BWC video, Sgt. Deleon arrived and walked up to § 87(2)(b) at 3:00 of the recording. During this time, § 87(2)(b) complained that his arm hurt and that it was broken. § 87(2)(b) was already handcuffed at this point of the incident. Sgt. Deleon asked all the officers in the vicinity if they were okay. At 3:10 of the recording, § 87(2)(b) said, “He snapped my arm.” Sgt. Deleon replied, “Shut up. I’ll fucking fuck you up” and walked away (Board Review 03).

During his CCRB statement, Sgt. Deleon identified himself in PO Serviss' BWC video. He identified himself as the officer who says, "I'll fucking fuck you up." When asked why he made that comment, he replied that he did not recall saying it but he believed that § 87(2)(b) said something to him earlier that annoyed him and prompted him to respond in that way. He could not recall what § 87(2)(b) said and could not point out when it happened. He stated that it was possibly not caught on the video.

Per the September 27, 2018 BWC Deployment Roster, Sgt. Deleon did not have a BWC assigned to him at the time of the incident and therefore did not record his interaction with § 87(2)(b) (Board Review 36).

In DAO-DCT case number 2015-15012, it was held that officers may use profanities in the context of a dynamic situation over which he or she is attempting to gain control but may not do so when it serves no legitimate purpose but to belittle a civilian (Board Review 27). Per Patrol Guide Procedure 203-10, officers are prohibited from making discourteous remarks (Board Review 26).

According to Patrol Guide 221.01, force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody (Board Review 28).

§ 87(2)(g)

Therefore, it is recommended that **Allegations G and H** be closed as **Substantiated**.

Allegation (I) Discourtesy: At 100-01 217th Lane, in Queens, Police Officer Brendan McNamara spoke discourteously to § 87(2)(b)

§ 87(2)(b) alleged that as he was placed into a police vehicle, the driver of the vehicle, a white male, medium build, and brown hair, told him to "shut the fuck up" when he complained about his arm.

The investigation determined that § 87(2)(b) was placed into vehicle number 3594 and PO McNamara was the assigned driver. PO McNamara's BWC video (Board Review 12) shows at the 2:09 mark he walked several feet behind § 87(2)(b) as he walked to a vehicle by PO William Hesperer and PO Angel Rivera. PO McNamara's video ends as he walks towards the vehicle. In PO Hesperer (Board Review 09) and PO Rivera's (Board Review 10) BWC videos, § 87(2)(b) is placed into the vehicle and there is no officer seated in the driver's seat. § 87(2)(b) does not complain about his arm and no officer is heard telling him to, "shut the fuck up."

PO McNamara did not hear any officers cursing at § 87(2)(b) while getting into the vehicle but did not have much recollection of the incident or if he drove § 87(2)(b) to any location (Board Review 29).

§ 87(2)(g)

it is therefore recommended that **Allegation I** be closed as **Unfounded**.

Allegation (J) Discourtesy: In an ambulance, Police Officer Brendan McNamara spoke discourteously to § 87(2)(b)

Allegation (K) Discourtesy: At the 105th Precinct Stationhouse, Police Officer Brendan McNamara spoke discourteously to § 87(2)(b)

§ 87(2)(b) alleged that he complained of his arm hurting in the ambulance and at the 105th Precinct Stationhouse and PO McNamara told him to, “shut the fuck up.” PO McNamara was the only officer with him in the ambulance. After he was released from the hospital, PO McNamara drove § 87(2)(b) back to the 105th Precinct Stationhouse. Near the cell area, § 87(2)(b) complained of his arm hurting and PO McNamara allegedly told him to, “shut the fuck up.”

PO McNamara testified that he followed the ambulance in a police vehicle and was not in the ambulance. He did not recall if he drove § 87(2)(b) to the stationhouse, although his second BWC video (Board Review 15) shows him walking § 87(2)(b) into the stationhouse and bringing him in front of the desk. His arresting officer, PO Delrosario is also at the desk. § 87(2)(b) does not complain of any pain or injuries and is quiet as he is brought in and searched in front of the desk. An unidentified officer asked § 87(2)(b) at 1:01 what the hospital said and § 87(2)(b) calmly replied, “bruises.”

PO Delrosario denied that any officer cursed at § 87(2)(b) at the stationhouse and stated that § 87(2)(b) was calm the entire time. He did not have any BWC video from the stationhouse.

§ 87(2)(b)'s medical records do not note any specific officers that transported him to the hospital.

There is no BWC footage that depicts § 87(2)(b) in the cell areas or in the ambulance.

§ 87(2)(g)

It is therefore recommended that **Allegations J and K** be closed as **Unsubstantiated**.

Allegation (L) Discourtesy: At Queens Central Booking, an officer spoke discourteously to

§ 87(2)(b)

§ 87(2)(b) alleged that while in Queens Central Booking, a Hispanic male officer with a mustache, olive complexion, 5'11" tall, chubby, and in his 40s, who had been with him at the hospital but not on scene, told him to, “shut the fuck up” when he complained that his arm hurt. The subject officer was the same one that transported him to Queens Central Booking.

Sgt. Deleon and PO McNamara denied transporting § 87(2)(b) to Queens Central Booking and PO Delrosario did not know who transported him.

The 105th Precinct Command Log (Board Review 30) noted that PO Joseph Murphy and PO Brandon McNally transported § 87(2)(b) via van, however neither officer matches the description provided by § 87(2)(b). PO Murphy is a light skinned, white male, 6'2, 240 pounds, no facial hair, and was 30 years old at the time of the incident. PO McNally is a white male, 5'10, 170 pounds, no facial hair, and 25 years old at the time (Board Review 31).

§ 87(2)(g)

It is therefore recommended that **Allegation L** be closed as **Officer(s) Unidentified**.

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 32).
- PO Alan Delrosario has been a member of service for four years and this is the first CCRB complaint to which he has been a subject.
- PO Matthew Kashdan has been a member of service for 15 years and has been a subject in one prior CCRB complaint and one allegation, which was not substantiated. § 87(2)(g)
- PO Brendan Mcnamara has been a member of service for five years and this is the first CCRB complaint to which he has been a subject.
- Sgt. Adriano Deleon has been a member of service for 14 years and has been a subject in 11 CCRB complaints and 23 allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation.
- As of November 21, 2019, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this complaint (Board Review 33).

• [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____

CCRB Case # 201808025

Signature

Print Title & Name

Date